



Instruction to the Company Secretary

Delegation of Authority, taking the draft to adoption

To: The Company Secretary, Havana Specialist Hospital Limited

From: Dr Debo Odulana, Independent Non-Executive Director (on behalf of the Board)

Copy: The Board Chair; the Chair of the People and Remuneration Committee

Date: 3 July 2026

Classification: Confidential

This note transmits a draft Delegation of Authority and Reserved Matters schedule and asks you to take it through to Board adoption. The draft is a starting point prepared to save time; it is expressly for you to formalise, test, and route through the proper committee and the Board. It is not a finished instrument and should not be treated as adopted.

1. What is attached

A draft **Delegation of Authority (DOA) and Reserved Matters** schedule for HSH, structured to be exhaustive (every category of decision covered, with a residual rule) and unambiguous (one decision owner per matter). The financial thresholds are shown as placeholder bands ([Band 1 to 4]) for the Board to set.

2. What we would like you to do

Please take the draft forward as follows. This is deliberately routed through you, and then through committee and the Board, so that the DOA is a **board-adopted instrument owned by everyone**, not a document settled by any single officer.

1. **Formalise it.** Put the draft into the company's own house format as a formal governance instrument, with a version number, effective-date field, and a signature or minute reference for adoption.
2. **Set the financial bands with finance.** Work with the Head of Finance and the co-chairs of the Finance, Investment and Operations Committee to propose concrete Naira figures for Bands 1 to 4, and with the Audit and Risk Committee on the control aspects (dual authorisation, aggregation, sub-delegation limits).
3. **Test it against our existing agreements.** Check the reserved matters and thresholds against the **shareholders' agreement** and the **Afya management / partnership agreement**, and flag any place where the DOA and those documents differ. Where they conflict, the executed agreements govern, and the DOA must be aligned to them. Please confirm the **required shareholder majorities** for each matter marked "S".
4. **Confirm completeness.** Satisfy yourself that the schedule covers every material category of decision the hospital makes, adding any HSH-specific matter that is missing, so we rely on the residual rule as little as possible.
5. **Route it for recommendation.** Table the tested draft at the **People and Remuneration / Nominations Committee**, which owns the DOA, for review and a recommendation to the Board. Ensure both founding families' directors have genuine input to the thresholds and reserved matters at



that stage.

6. **Route it for adoption.** Place the committee's recommended version before the **full Board** for formal adoption, with the Board Chair steering the discussion.
7. **Stand up the administration.** After adoption, hold the master copy and version history, maintain the register of interests, keep a log of any decision taken outside the delegated limits (for ratification or reversal at the next Board meeting), and diarise the annual review and any review triggered by a change to the Afya or shareholders' agreements.

3. Two points on approach

- **Separate the structure from the numbers.** The reserved-matters logic and the ownership map are largely uncontroversial and can be recommended and adopted quickly. The **threshold figures** are the negotiable part; let those be agreed through the committee with finance input, so they are settled by agreement rather than imposed. The Board can adopt the framework now and ratify the numbers at the next sitting.
- **Fair process.** Because this schedule allocates authority, its legitimacy depends on both families having a real voice in shaping it. The committee stage (step 5) is where that happens, and it should be visible in the minutes.

4. Timing

We would value having a formalised, tested draft ready for the People and Remuneration Committee ahead of the next Board cycle, so the Board can consider adoption at, or shortly after, its next meeting. Please let the Board Chair know if you foresee any obstacle to that.

5. A note on the draft's origin

The draft was prepared through Consult for Africa's advisory work with the Board. Having handed it over, I will support the process on request but will not own the instrument; it belongs with you to administer and with the committee and Board to shape and adopt. Please treat your professional judgement, and our executed agreements, as taking precedence over anything in the draft.

With thanks for taking this forward.

Dr Debo Odulana

Independent Non-Executive Director

Havana Specialist Hospital Limited

Attachment: Draft Delegation of Authority and Reserved Matters schedule (Consult for Africa).